RODNEY JULIUS
and
THE STATE

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE 10 & 13 FEBRUARY 2026

Bail Appeal

B Pabwe, for the appellant
F I Nyahunzvi, for the respondent

CHIKOWERO J

[1] This is an appeal from the judgment of the Magistrates Court (the court a quo) refusing to admit the appellant to bail pending trial on a charge of fraud as defined in s136 of the Criminal Law (Codification and Reform) Act [*Chapter* 9:23] (the criminal law Code) .

[2] The appeal is opposed.

[3] The court a quo grounded its decision on two findings. First, that the charge is serious and that the prosecution had a strong case against the appellant. Second, that the appellant will interfere with state witnesses.

[4] Likewise, the appeal is predicated on two grounds. They read:

> "1. The learned Magistrate grossly misdirected herself in arriving at a conclusion devoid of any demonstrable basis as to why appellant was not a suitable candidate for bail pending trial with suitable conditions.
> 2. The court a quo grossly misdirected itself in failing to consider the defence raised by the appellant and not deciding on any of the issues raised thereby disregarding the right to innocence."

[5] I have no difficulty in finding that the judgment rendered a quo does not demonstrate that judicious discretion was brought to bear on the question of bail. What that Court did was to highlight the law on bail, recite the submissions by the parties and in a skeletal judgment made the finding mentioned at para 2 of this judgment. What is not evident from the judgment a quo is a full analysis of the matter and application of the legal principles to the case before it.

[6] For instance, there was no specific finding that the appellant will not stand trial if admitted to bail. The court a quo was content to find that the case for the prosecution appeared to

be strong (without weighing the defence of the appellant against the allegations and material contained in the Request for Reward Form and the annexures thereto). Its thought process as regards as regards the status of the appellant as a British citizen and permanent resident as well as the fact that his passport was held by the Zimbabwe Anti-Corruption Commission (ZACC) and the interplay thereof with the prosecution's argument that the appellant will not stand trial were factors not discussed in the judgment.

[7] Since the original discretion was exercised in an improper manner I will exercise fresh discretion on the issue of bail. See *S* v *Malunjwa* 2003 (1) ZLR 257(H)

[8] But what are the allegations levelled against the appellant? They are these.

[9] The complainant is the Agricultural and Rural Development Authority (ARDA). It is represented by its Head of Security and Loss Control Officer

[10] In May 2025 the appellant acting in connivance with Blessing Benhura who is already on remand and Kudzai Nduku (a fugitive from justice) hatched a plan to obtain from ARDA farming inputs otherwise earmarked for distribution to farmers. They submitted a list of names of fictious farmers to ARDA. They authored false recommendation letters from Agritex as well as false offer letters purportedly issued by the Ministry of Lands, Agriculture, Fisheries, Water and Rural Development. Armed with these documents they then applied to enter into contract farming agreements with ARDA wherein that entity would supply farming inputs to the purported farmers.

[11] The appellant then submitted documentation to ARDA purporting that he had an agreement with the "farmers" to be their guarantor and that he had been authorized to collect the inputs on their behalf.

[12] Having secured contracts with the complainant, the appellant, instructed Blessing Benhura to proceed to Fertilizer, Seed and Grain Company (FSG) in Bindura on 9 May 2025 to collect 64 tonnes of Compound D fertilizer, 15 tonnes of wheat seed from ARDA Seeds (Pvt) Ltd in Chitungwiza and 60 tonnes of Ammonium Nitrate fertilizer on behalf of the fictious farmers on 29 May 2025 for purported delivery in Banket.

[13] Benhura sold the inputs to various individuals in Harare. He shared the proceeds with the appellant and Nduku. The offence was discovered when ARDA officials went to inspect the crops only to discover that the farmers were ghosts, so to speak, and no wheat was planted.

[14] The total value of the Presidential inputs so collected is US296 546. 18. Nothing was recovered.

[15] The appellant's defence is outlined thus. In January 2025 Nduku proposed to the appellant that the latter funds joint venture agreements with farmers after which he would recoup his expenses from proceeds of the sale of the harvest to the Grain Marketing Board.

[16] Susan Nyawaranda, who was in this country at the material time, also played a critical role in engaging the farmers and the relevant authorities at the instance of Nduku.

[17] The appellant paid the necessary funds for setting up the project. The proof is contained in his mobile phone which is being held by ZACC.

[18] The appellant disputes drafting the joint venture agreements and various false documents mentioned in this judgment.

[19] The appellant signed documents confirming that he was the farmers; guarantor. He signed these documents at ARDA. This was at the request of Nduku and Nyawaranda. At the time that he signed these documents, the appellant believed that the farmers existed and all the other documents were genuine.

[20] He took no part in the transportation of the inputs and benefitted nothing from the proceeds of the alleged crime. His passport will show that he was not in this country at critical stages of execution of the alleged criminal scheme.

[21] He fell victim to the shenanigans of Nduku and Nyawaranda.

[22] The prosecution lists delivery notes, whatsapp extracts, witness statements and contract documents as the pieces of evidence against the appellant.

[23] It seems to me that the appellant may very well have a lot of explaining to do at the trial. The evidence against him will not only be oral. It will also be documentary. A total 0of 139 tonnes of inputs was collected. The purported 14 farmers were fictious. Although I am not the trial court, it appears, for my purposes questionable that the appellant would expose himself to guaranteeing 139 tonnes of inputs to 14 farmers without meeting not even one of the purported beneficiaries. He is a business person and would have been expected to undertake the minimum due diligence unless, of course, he was conniving with Nduku and Benhura.

[24] I am satisfied that the case for the prosecution appears to be sufficiently strong as to incentivize the appellant not to stand trial.

[25] There can be no doubt that the circumstances of this matter are indicative of a serious crime of fraud. The statutory penalty for fraud is a fine not exceeding level fourteen or not exceeding twice the value of any property obtained as a result of the crime, whichever is greater or imprisonment for a period not exceeding thirty five years, or both. The presumptive penalty on conviction for fraud committed in aggravating circumstances is 20 years imprisonment.

[25] The appellant is a British citizen and a permanent resident of that country. He has lived there for a long time. He is a visitor to Zimbabwe, despite owning a farm in Mvuma. For reasons unknown, he has neither disclosed his assets nor the extent of funds held by him in the United Kingdom and in Zimbabwe. He has offered security in the form of immovable property situate in Harare, but not owned by him.

[26] That the appellant is a British citizen and permanent resident thereof means that his ties to that country are stronger than his ties to the place of trial (Zimbabwe). That his passport is being held by ZACC, and that he has offered to surrender it to the clerk of court as part of the bail conditions does not, in my view, allay the substantial risk that his release on bail will enable him to be a fugitive from justice. He does not need that passport to travel to any of Zimbabwe's neighbours. Further, it would be naïve for this court not to be mindful of the fact that one can obtain a new passport under a false identity.

[27] The gravity of the crime, the strength of the case for the prosecution, the severity of the penalty in the event of a conviction as well as his foreign nationality are factors that outweigh those which would keep the appellant in this country were he to be admitted to bail pending trial. See *S* v *Jongwe* 2002 (2) ZLR 209 (S).

[28] The appellant, a business person and consultant, need not be in this country to earn a living. I have already said he is a British citizen and permanent resident of that country.

[29] I am satisfied that no manner of bail conditions can allay the evident risk of the appellant becoming a fugitive from justice in the event that he is admitted to bail pending trial. A compelling case stares this court in the face disentitling the appellant to pretrial liberty, the presumption of innocence notwithstanding.

[30] The need to discuss any other grounds relating to bail refusal falls away.

[31] In the result, although on the basis of somewhat more expansive reasons, I have at the end of the day agreed with the court a quo that bail be denied.

[32] The appeal against the judgement of the Magistrates Court refusing bail be and is dismissed.

CHIKOWERO J……

Venturas and Samukange, appellant's legal practitioners.
The national prosecuting Authority, respondent's legal practitioners